IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION

United States Courts
Southern District of Texas
FILED
OCT 09 2026
Nathan Ochsner, Clerk of Court

REINALDO J. AGUIAR MARCANO, *Plaintiff, Pro Se,*	)	
v.	)	**CIVIL ACTION NO. 4:26-CV-08794**
G. TROY PICKETT, et al., *Defendants.*	)	**JUDGE KENNETH M. HOYT**

PLAINTIFF'S EMERGENCY ADVISORY REGARDING PENDING *EX PARTE* APPLICATION FOR A TEMPORARY RESTRAINING ORDER (DOC. 2), REQUEST FOR EXPEDITED RULING, AND MOTION FOR LEAVE TO FILE ELECTRONICALLY (CM/ECF)

COMES NOW Plaintiff Reinaldo J. Aguiar Marcano, proceeding *pro se*, and respectfully submits this **Emergency Advisory Regarding Pending *Ex Parte* Application for a Temporary Restraining Order (Doc. 2), Request for Expedited Ruling, and Motion for Leave to Participate in Electronic Filing (CM/ECF)**, showing the Court as follows:

I. EMERGENCY ADVISORY: DOCKETING ANOMALY ON DOCUMENT 2

1. On October 7, 2026, the Clerk of Court entered and docketed Plaintiff's Complaint (Doc. 1) and Plaintiff's **Emergency *Ex Parte* Application for a Temporary Restraining**

Order and Preliminary Injunction pursuant to Federal Rule of Civil Procedure 65 (Doc. 2), accompanied by a Proposed Order (Doc. 2-1).

2. Docket Entry No. 2 contains an administrative docketing designation that threatens to undermine the core purpose of emergency provisional relief under Federal Rule of Civil Procedure 65(b). Specifically, the docket entry reads:

> *"EMERGENCY MOTION for Ex Parte Application for a Temporary Restraining Order and Preliminary Injunction by Reinaldo J. Aguiar Marcano, filed.* ***Motion Docket Date 10/28/2026.*** *(bow4)"*

3. This 21-day "Motion Docket Date" of October 28, 2026, is the standard, automated submission calendar applied by the Clerk's Office to ordinary, non-emergency civil motions under Southern District of Texas Local Rules 7.3 and 7.4.

4. However, Document 2 is **not an ordinary civil motion.** It is a verified emergency application for an immediate *ex parte* Temporary Restraining Order under Rule 65(b), supported by Plaintiff's specific Rule 65(b)(2) certification of ex parte urgency and an unsworn verification executed under penalty of perjury pursuant to 28 U.S.C. § 1746.

5. Subjecting an emergency Rule 65(b) application to the ordinary 21-day submission track introduces a catastrophic delay that would defeat the very purpose of emergency relief before the Court ever reviews the papers:

- **145+ Days of Active Constructive Confinement:** Plaintiff is currently subject to a live, void civil arrest warrant (Capias) issued by the 387th Judicial District Court of Fort Bend County, Texas, which has remained live in the state registry for exactly 145 consecutive days. This warrant was issued without personal service of the underlying show-cause order, and during a mandatory statutory stay under Texas Rule of Civil Procedure 18a(g).
- **The Imminent November 5, 2026 State Court Setting:** On October 6, 2026, Defendants G. Troy Pickett and Gloria Espina filed a "Motion to Modify Temporary Orders" and scheduled a mandatory in-person hearing for **November 5, 2026, at 9:00 AM** in the 387th District Court. This creates an unconstitutional, coercive dilemma: if Plaintiff physically appears, he faces immediate roadside or courtroom arrest under the void Capias; if he does not appear, the state court will enter an irreversible default

judgment permanently seizing his home and extinguishing his fundamental parental rights.

6. A Temporary Restraining Order under Rule 65(b) is designed precisely to freeze the status quo and prevent such imminent, irreparable constitutional injuries. If consideration of Document 2 is delayed until October 28, 2026, Plaintiff will be left defenseless during the critical pre-hearing window, and any subsequent response deadline will run past the November 5, 2026 state court setting.

7. Accordingly, Plaintiff respectfully advises the Court of this docketing anomaly and prays that the Court take up Document 2 for **immediate expedited consideration**, enter the Proposed Temporary Restraining Order (Doc. 2-1) to preserve the status quo, or in the alternative, schedule an emergency hearing via telephone or videoconference at the Court's earliest convenience.

II. MOTION FOR LEAVE TO PARTICIPATE IN ELECTRONIC FILING (CM/ECF)

8. Plaintiff further moves this Court for an order granting him authorization and credentials to participate as a Filing User in the Court's Electronic Case Filing (CM/ECF) system for this action, pursuant to the Southern District of Texas Administrative Procedures for Electronic Filing and Local Rules.

9. Under the Court's local procedures, a *pro se* litigant who is not incarcerated may be granted electronic filing privileges upon a written request and order of the presiding District Judge. Good cause exists to grant Plaintiff electronic filing privileges in this matter:

(a) **Non-Incarcerated Status & Technical Capacity:** Plaintiff is not incarcerated. Plaintiff is an experienced technologist, former Google Search Ranking Staff Engineer, and inventor with full access to high-speed internet, modern computer hardware, document scanning capabilities, and an active PACER account. Plaintiff is fully capable of complying with all CM/ECF technical standards, PDF/A formatting requirements, and federal redaction rules.

(b) **Execution of E-Service Consent (Doc. 5):** Concurrently with this motion, Plaintiff has executed and submitted the formal **Consent to Electronic Notice (NEF)** form

provided in the Court's Notice to Pro Se Litigant (Doc. 5), consenting to receive all electronic notices and service via email.

(c) **Physical Confinement Trap:** Requiring Plaintiff to file exclusively on paper via physical trips to commercial couriers or the federal courthouse creates a severe, ongoing constitutional risk. Because the void state Capias remains active in the Fort Bend County warrant system, physical travel outside his residence exposes Plaintiff to immediate, unlawful arrest under the very order this lawsuit seeks to enjoin.

(d) **Judicial Economy and Expedited Resolution:** This action involves time-sensitive constitutional claims and emergency injunctive relief under Rule 65. Granting electronic filing privileges will eliminate multi-day courier transit delays, ensure instantaneous transmission of pleadings and orders, reduce administrative burdens on the Clerk's Office, and allow the parties and the Court to proceed with maximum efficiency.

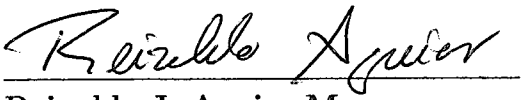
10. No party will be prejudiced by granting Plaintiff electronic filing privileges; rather, it will ensure transparent, instantaneous, and equal access to justice.

III. PRAYER FOR RELIEF

WHEREFORE, PREMISES CONSIDERED, Plaintiff Reinaldo J. Aguiar Marcano respectfully prays that this Court:

1. **EXPEDITE** the consideration of Plaintiff's Emergency *Ex Parte* Application for a Temporary Restraining Order and Preliminary Injunction (Doc. 2) and vacate the automated October 28, 2026 motion submission date;
2. **ENTER** the Proposed Temporary Restraining Order (Doc. 2-1) enjoining Defendant Sheriff Eric Fagan and his deputies from executing or enforcing the void Capias in Cause No. 25-DCV-328122, or alternatively, schedule an expedited emergency hearing by telephone or videoconference;
3. **GRANT** Plaintiff leave to participate as a registered Filing User in the Court's CM/ECF electronic filing system for Civil Action No. 4:26-CV-08794; and
4. Grant Plaintiff such other and further relief, at law or in equity, to which he may show himself justly entitled.

Respectfully submitted,



Reinaldo J. Aguiar Marcano
Plaintiff, Pro Se
Mailing Address: 2302 Britton Ridge Drive, Katy, Texas 77494
Telephone: (202) 599-3979
Email: `rj.aguiar.m@gmail.com` / `reinaldo.aguiar.marcano@isbn9781971481296.com`

UNSWORN DECLARATION (28 U.S.C. § 1746)

I declare under penalty of perjury under the laws of the United States of America that the factual statements contained in the foregoing Emergency Advisory, Request for Expedited Ruling, and Motion for Leave to File Electronically are true and correct.

Executed in Katy, Texas, on this 8th day of October, 2026.



Reinaldo J. Aguiar Marcano, *Plaintiff, Pro Se*

CERTIFICATE OF EX PARTE SUBMISSION (FED. R. CIV. P. 5(a)(1)(D) & RULE 65(b))

I hereby certify that on this 8th day of October, 2026, the foregoing document was dispatched via Federal Express (FedEx Priority Overnight) solely to the Clerk of Court for filing and submission to the Presiding District Judge, and an advance electronic courtesy copy was transmitted to the Clerk's Office (`houston_operation@txs.uscourts.gov`) for delivery to chambers.

Pursuant to Federal Rule of Civil Procedure 5(a)(1)(D) and Federal Rule of Civil Procedure 65(b), service of this Emergency Advisory upon adverse parties is withheld at this time because it directly appertains to Plaintiff's pending *Emergency Ex Parte Application for a Temporary Restraining Order* (Doc. 2). As certified under penalty of perjury in Plaintiff's Rule 65(b)(2) Certification (Doc. 2 at 4–5), providing advance notice to Defendants G. Troy Pickett and Sheriff Eric Fagan prior to this Court's review and entry of protective injunctive relief creates an imminent risk that Defendants will immediately execute the vóid arrest warrant, thereby physically incarcerating Plaintiff and defeating this Court's jurisdiction before the emergency application can be heard.

Promptly upon the Court's ruling on the *ex parte* application, Plaintiff will effectuate formal service of all pleadings, motions, and orders upon all named Defendants in accordance with the Federal Rules of Civil Procedure.

Reinaldo Aguiar

Reinaldo J. Aguiar Marcano, *Plaintiff, Pro Se*

October 8, 2026

VIA FEDEX PRIORITY OVERNIGHT
Office of the Clerk of Court
United States District Court for the Southern District of Texas
Bob Casey United States Courthouse
515 Rusk Avenue, Room 1218, Houston, Texas 77002
Attn: Case Manager for Judge Kenneth M. Hoyt

Re: EMERGENCY SUBMISSION FOR FILING
Case Style: *Reinaldo J. Aguiar Marcano v. G. Troy Pickett, et al.*
Civil Action No.: 4:26-CV-08794 (Judge Kenneth M. Hoyt)

Dear Mr. Ochsner and Case Manager for Judge Hoyt,

Enclosed for filing in the above-referenced action, please find the following documents submitted by Plaintiff Reinaldo J. Aguiar Marcano, proceeding *pro se*:

1. **Plaintiff's Executed Consent to Electronic Notice (NEF):** Completed and signed form pursuant to the Court's Notice to Pro Se Litigant of Case Opening (Doc. 5);
2. **Plaintiff's Emergency Advisory Regarding Pending Ex Parte Application for a Temporary Restraining Order (Doc. 2), Request for Expedited Ruling, and Motion for Leave to File Electronically (CM/ECF):** (Original and one copy);
3. **[Proposed] Order Granting Expedited Consideration and Leave to Participate in Electronic Filing (CM/ECF).**

CRITICAL ADVISORY REGARDING DOCKET NO. 2 (EX PARTE TRO):
Plaintiff respectfully notes that on October 7, 2026, Plaintiff filed an *Emergency Ex Parte Application for a Temporary Restraining Order and Preliminary Injunction* under Fed. R. Civ. P. 65(b) (Doc. 2). The automated CM/ECF system assigned a standard 21-day submission date of October 28, 2026. Because Plaintiff faces an imminent, unconstitutional dilemma involving a live state arrest warrant and a scheduled November 5, 2026 in-person state-court hearing, Plaintiff respectfully requests that chambers be alerted immediately to the emergency nature of Document 2.

Pursuant to local practice, Plaintiff is telephonically advising Judge Hoyt's case manager at (713) 250-5613 of this emergency submission.

Thank you for your assistance and courtesies.

Respectfully submitted,

Reinaldo J. Aguiar Marcano
Plaintiff, Pro Se
Mailing Address: 2302 Britton Ridge Drive, Katy, Texas 77494
Telephone: (202) 599-3979
Email: rj.aguiar.m@gmail.com / reinaldo.aguiar.marcano@isbn9781971481296.com

ORIGIN ID:NQIA (832) 422-5937
REINALDO J AGUIAR MARCANO
2302 BRITTON RIDGE DR
KATY, TX 77494
UNITED STATES US

SHIP DATE: 08OCT26
ACTWGT: 0.20 LB
CAD: 268195147/INET4535

BILL SENDER

TO CLERK OF COURT, U.S. DISTRICT COURT
CIVIL INTAKE (4:26-CV-08794)
515 RUSK AVENUE, ROOM 5300
HOUSTON TX 77002
(713) 250-5500
INV:
PO:
REF:
DEPT:

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Southern District of Texas
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